Ref: 25055

14 October 2025

Attention: Lai Ha CHOW
Email: jadychow@gmail.com

Re: 185 Henwood Road, Westgate Pre-purchase Inspection Report

Further to your WeChat discussions, I would like to thank you for the opportunity to provide a professional fee proposal for the following services:

- Pre-purchase Residential Property Inspection [NZS4306:2005].
- Building Report for Residential Property.

ABOUT US

We hold memberships with the New Zealand Institute of Building Surveyors (NZIBS), the Master Degree of Construction Management, the Master Degree of Engineering, the Bachelor Degree of Science (Material) and the Project Management Professional.

SCOPE OF SERVICE

- Desktop review of the relevant documentation provided by the client.
- Visit the site and complete a detailed pre-purchase inspection review of the building in regards to NZS4306:2005.
- Prepare a detailed Building Report to provide independent opinions on the condition of the property and findings of defects during inspection.

Comments and Exclusions.

- No allowance for Planning services (to resolve defects, if any)
- No allowance for Council Property Files.
- No allowance for Structural or Fire Engineering services.
- No allowance for quantity surveying services.
- No allowance for timber samples to be collected and analysed.
- No allowance for coordinating with relevant trades to provide additional consulting where required
- Disbursements will be charged as follows: $1.50/km for mileage plus a 10% administration fee for all other disbursements.

FEE PROPOSAL

$700.00

Inspection and Report	Fixed	~~$750.00~~
Disbursements – Mileage, equipment, printing, etc.	Included	
Total Fees excluding GST		~~$750.00~~ $700.00

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Deposit

~~A 50% deposit of the Inspection and Report fee ($375+GST) will be required upon signing of this fee proposal (on page following). Once signed proposal is received an initial invoice for deposit shall be issued for payment~~. Our final invoice will be issued upon completion of our report and will need to be paid prior to release of the report.

Cost Savings

Due to scope of the works, prior experience in Pre-purchase Reports, a discount of over 40% has been applied.

Hourly charges

An hourly fee ($175 +GST) shall apply upon mutual consent where additional work is required to provide guidance or to coordinate and obtain consulting services from relevant trades (such as electrical, plumbing drain-laying, engineer etc...) We can provide guidance and contact details to client to obtain these to save on coordination/liaison costs.

Commencement

We can commence work within 3 working days of receiving signed proposal and deposit.

Report Delivery

Our standard delivery or completion of Pre-purchase Building Report is 7 working days from completion of site visit under normal circumstances where all required documentation has been received.

Terms of Engagement and Billing

This proposal and all services provided will be subject to our standard Engagement Terms and Conditions which are attached. Monthly billings to be paid by 20th of the following month unless otherwise agreed. If any of the clauses in the proposal conflict with the Terms and Conditions of Engagement, the proposal shall prevail.

If you have any queries regarding the information above, please do not hesitate to contact me.

Regards

李欣燃

Jake Li *MConMgt, MEng, BSc, PMP, MNZIBS [BSI0511]*
BUILDING SURVEYOR **MOBILE** 021 0826 0025
For and on behalf of Eastern Building Surveyors LIMITED

Acceptance of Offer of Service 25055 dated 14 October 2025

All services provided will be subject to our standard Terms & Conditions which are integral to this Offer of Service. Please confirm your acceptance of this offer by signing below and return a copy of this page or provide written instructions to proceed.

Signed for and on behalf of the Client

Signature: _____

Name: LAI HA CHOW

Date: 14 / 10 / 2025

TERMS AND CONDITIONS OF ENGAGEMENT

THE PARTIES

THE SERVICE PROVIDER: **EASTERN BUILDING SURVEYORS LIMITED**
hereafter referred to as "the Service Provider"

THE CLIENT:

hereafter referred to as "the Client"

1. SERVICE PROVIDER'S OBLIGATIONS
   - 1.1. The Service Provider will perform the Services outlined in the 'Offer of Service/Proposal' (Proposal) with the skill and care reasonably expected from a professional consultancy practice.
   - 1.2. The Services include (in scope) all services falling within any general services description under the Service Provider's Proposal that the Service Provider would reasonably be expected to perform for the project whether or not further particularised and provided that such services are necessary and incidental to, or customary for the provision of the services, except to the extent any services are expressly stated in the Proposal as out-of-scope or excluded.
   - 1.3. Any variations to the original scope of service are to be recorded by written agreement between the parties, together with any additional fees or deductions arising from the variations and to be carried out under this Agreement.
2. HEALTH AND SAFETY
   - 2.1. The Service Provider will use reasonable care to administer the health and safety obligations of other parties to the project where it is required to do so but will not assume any obligations as the Client's agent or otherwise which may be imposed upon the Client from time to time pursuant to the Health and Safety at Work Act 2015 arising out of its contract.
3. TOTAL LIABILITY AND INSURANCE
   - 3.1. The maximum aggregate amount payable whether in contract tort or otherwise in respect of claims, damages, liabilities, losses or expenses arising out of or in connection with the Services shall be five (3) times the fee (based on the aggregate of the fixed and estimated amounts in the Proposal, exclusive of GST and disbursements) with a maximum limit of $500,000. This limitation is set after considering the industry standard (IPENZ/ACENZ Short Form Model Conditions of Engagement.
   - 3.2. The Service Provider accepts no responsibility or liability for costs, losses or damages arising from:
     - 3.2.1. any errors or omissions from data or documents not prepared by the Service Provider; or
     - 3.2.2. any negligent or fraudulent act or omission by the Client or any other consultant, contractor or supplier to the Client, or any employee or agent of the Client, other consultant, contractor or supplier.
   - 3.3. Where the Service Provider breaches this Agreement, the Service Provider is liable to the Client for reasonably foreseeable claims, damages, liabilities, losses or expenses caused directly by the breach, however such liability is limited as per clause 3.1. The Client acknowledges that in no circumstances shall the Service Provider be liable to the Client for any consequential loss.
   - 3.4. The extent of the Service Provider's liability, however that liability arises including (without limitation) from breach of contract, repudiation, tort including (without limitation) negligence, misrepresentation, breach of warranty or breach of statute shall be limited and subject proportionately to the extent of any act or omission of the Client and/or any other party contributing to the loss or damage.
   - 3.5. The Service Provider shall take out and maintain for the duration of the Services:
     - 3.5.1. Professional Indemnity insurance for a minimum of $1,000,000 for any one claim;
     - 3.5.2. Public Liability insurance cover for a minimum of $5,000,000 for any one claim;
     - 3.5.3. Statutory Liability insurance for a minimum of $1,000,000 for any one claim.
   - 3.6. The Service Provider shall use all reasonable endeavours to maintain professional indemnity insurance for a period of 6 years following completion of the Services. If at any the Service Provider is unable to obtain or maintain professional indemnity cover as required, or if any material change to the terms and conditions of the cover occurs, the Service Provider shall, as soon as practicable, notify the Client in writing.
   - 3.7. If the Client asks, the Service Provider must produce certificates evidencing the currency of such cover and proving that professional indemnity and public liability insurance policies meet the requirements of clause 3.5.

4. **PRICE**

4.1. Any Services will be invoiced at the price set by the Service Provider in the Fee Proposal unless otherwise mutually agreed in writing by the Client and Service Provider.

4.2. Changes to any Service to be provided to the Client that were not specified in the Fee Proposal may result in additional charges. Where possible, these items will be negotiated and agreed before any Service is provided, otherwise they will be charged at the Service Providers usual rates per the Service provided."

5. **PAYMENT**

5.1. Specific payment arrangements if outlined in the offer of service/proposal will supersede 5.2 and 5.3 below.

5.2. The Service Provider will submit monthly invoices to the Client at the end of each calendar month.

5.3. Payment shall be made by the Client to the Service Provider by cheque or direct credit on or before 7 days from the date of the invoice. However, the Service Provider reserves the right to alter the payment terms, including requiring payment for any Service, before the Service is provided.

5.4. If full payment for any Service is not made to the Service Provider, as required in clause 5.3, the Client shall be in default and the Client shall at the Service Providers discretion (and without affecting any other right the Service Provider may have), pay default interest on any amount outstanding to the Service Provider in accordance with the following;

5.4.1. the default interest rate shall be 12 per cent per annum; and,

5.4.2. default interest shall accrue on a daily basis from the date when payment is due until the date when payment is actually made; and

5.4.3. the Client shall be liable to pay all expenses and costs (including legal costs as between solicitor and client) in relation to the Service Provider in obtaining or attempting to obtain a remedy for the failure to pay.

5.5. All payments pursuant to 5.4 (5.4.1 - 5.4.3 inclusive) shall be upon demand. The charging of default interest shall in no way imply the granting or an extension of credit by the Service Provider to the Client.

5.6. Receipt of a cheque, bill of exchange or other negotiable instrument shall not constitute payment until such negotiable instrument is paid in full.

5.7. The Service Provider reserves the right to suspend any Service provided to the Client by giving written notice to the Client in the event of non-payment of accounts at the correct time.

5.8. In the event that there is a change in the timing or complexity of the Services and such circumstances are not the result of a breach of this Agreement by the Service Provider, then the Service Provider may review the Fee Proposal and Programme Timeframe and will notify and provide the reviewed Fee Proposal and Programme Timeframe to the Client for their approval.

6. **WARRANTIES**

6.1. The Service Provider will have no liability either in contract or in tort for any loss suffered by the Client or any third party claiming through the Client for which the Service Provider has not accepted in writing for such loss.

7. **INDEMNITY**

7.1. The Client indemnifies the Service Provider against any action taken by a third party against the Service Provider where the Service Provider is acting as agent to the client.

8. **CONFIDENTIAL INFORMATION & DOCUMENTS**

8.1. Both parties shall keep all Confidential Information obtained by them in the context of this Agreement confidential and shall not divulge it without the written approval of the other party except its related companies and its professional advisers.

8.2. The contents of any written report or other advice prepared by the Service Provider have been prepared solely for the Client (including its members) and are not to be relied upon by any third party. The Service Provider accepts no responsibility for anything done or not done by any third party in reliance, whether wholly or partially, on any of the contents of the Service Provider's advice.

9. **COPYRIGHT**

9.1. The Service Provider shall retain intellectual property and copyright in all drawings, specifications and other documents ("Deliverables") prepared by the Service Provider but the Client may have access to, and may have copies of and use of the deliverables in respect of this project for the purpose of this project in perpetuity.

9.2. All deliverables issued by the Service Provider in respect of the services remain the property of the Service Provider until such time as all fees for the relevant deliverables are paid in full.

10. TERMINATION

10.1. The term of this Agreement will expire when the Services are completed, and all fees and other charges are paid.

10.2. Before the expiry of the term, either party may terminate this Agreement by providing two calendar months' notice in writing to the other provided that clause 5 will continue to apply after the termination of this Agreement.

10.3. A party may immediately terminate this Agreement by written notice to the other party in the event that;

10.3.1. the other party commits a material breach of this Agreement and fails to remedy the breach within 5 working days of written notice of the breach being given, or

10.3.2. the other party is unable to pay its debts when due, becomes insolvent, or steps are taken to make the other party bankrupt or have a receiver, receiver and manager, administrator, liquidator or statutory manager appointed.

10.4. Termination shall not prejudice or affect the accrued rights or claims and liabilities of the parties.

10.5. The Client shall pay all fees and other charges for Services performed by the Service Provider to the date of termination or expiry, payment of which will be subject to the payment terms and process in clause 5.

11. DISPUTE RESOLUTION

11.1. The parties shall in good faith endeavour to resolve any dispute that may arise in connection with this Agreement. The party claiming a dispute has arisen shall give to the other party notice specifying the nature of the dispute ('Dispute Notice").

11.2. If the parties are unable to resolve the dispute within 20 working days after the relevant Notice of Dispute was given the dispute shall be mediated in accordance with the standard mediation agreement of LEADR New Zealand Incorporated and the Chair of LEADR (of the Chairs nominee) will select the mediator and determine the mediator's remuneration.

12. NOTICES

12.1. Any notice given under this Agreement shall be provided in accordance with the Property Law Act.

13. GOVERNING LAW

13.1. The interpretation, validity and enforcement of this Agreement shall be governed by the laws of New Zealand.

14. PRIVACY ACT 1993

14.1. The Client acknowledges that the Service Provider may collect from the Client any personal information the Service Provider may consider appropriate having regard to the nature of the Services and use and retain that information in the ordinary course of its business.

15. SEVERANCE

15.1. If any clause or part of a clause of these terms and conditions is held to be invalid or unenforceable for whatever reason to the extent not inconsistent with the aforementioned invalid clause, the remaining provisions shall remain in full force and effect.

16. MISCELLANEOUS

16.1. If at any time the Service Provider does not enforce any of these terms and conditions or grants the Client time or other indulgence, the Service Provider shall not be construed as having waived that term or condition or its rights to later enforce that or any other term or condition.

16.2. The Service Provider is an independent contractor and not an employee, agent, partner, or joint venture of the Client.

17. THE PROPOSAL AND OTHER DOCUMENTS FORM PART OF THE EASTERN BUILDING SURVEYORS LIMITED TERMS AND CONDITIONS OF ENGAGEMENT

17.1. These Terms and Conditions of Engagement shall be read in conjunction with the 'Offer of Service/Proposal' and any document(s) attached, all of which form the Agreement between the parties.

EXECUTION

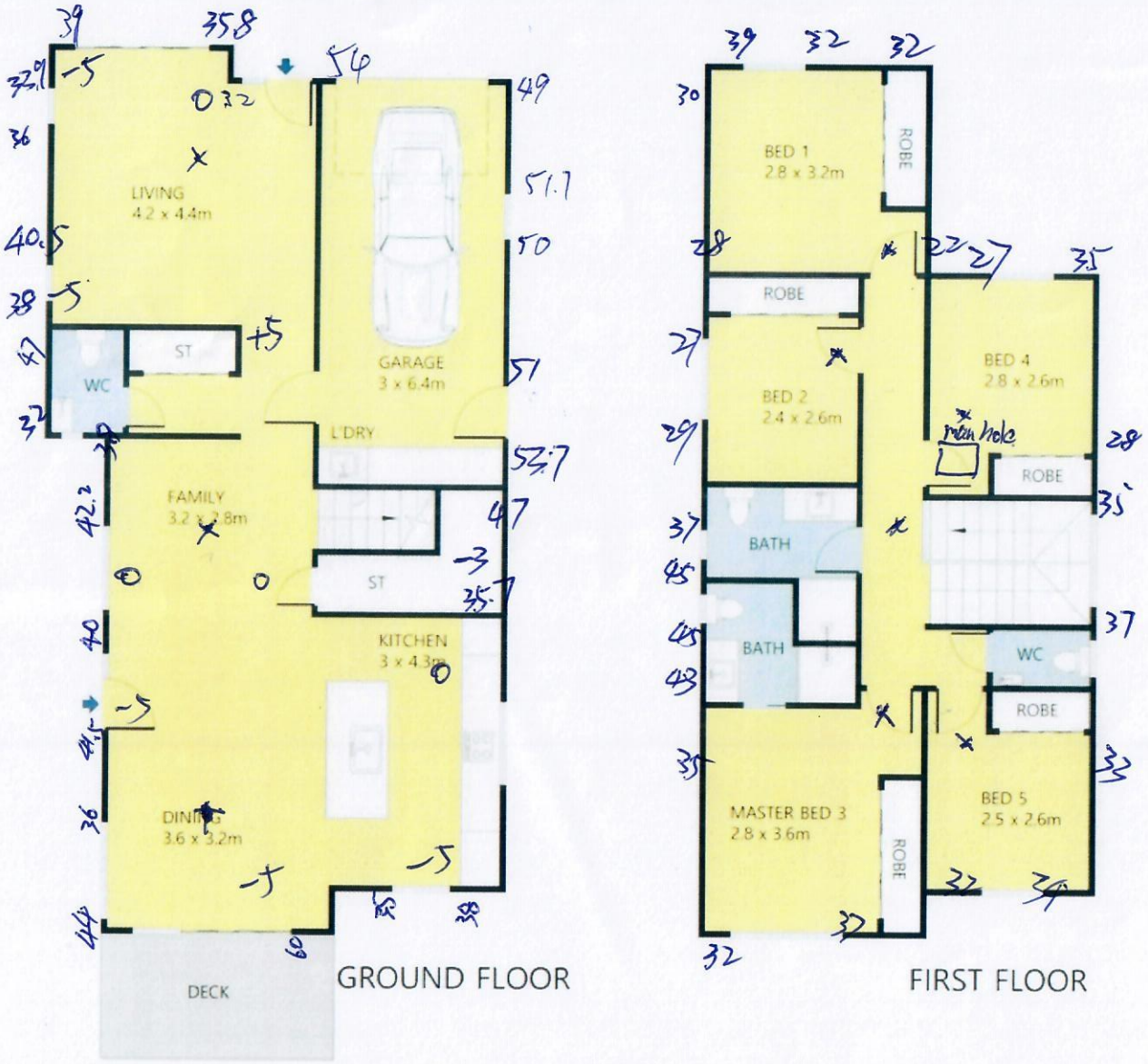
The parties acknowledge that:

(1) the Offer of Service/Proposal, these Terms and Conditions of Engagement and any other documents specifically named in the Offer of Service/Proposal, constitutes the entire Agreement and contract between the parties and supersedes all prior representations in connection with that subject matter;

(2) they have read and understood the entire contract documentation;

(3) they have had the opportunity to seek legal advice on this Agreement and have either obtained such advice or decided on their own volition not to obtain such advice.

Signatures on the 'Offer of Service/Proposal' constitute an Agreement between the parties.



BARFOOT & THOMPSON

185 Henwood Road, Westgate

The floor plan provided is not drawn to scale and should be used as a visual guide only. The dimensions given are approximate. We are not liable for any inaccuracies or missing information.